SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 19, Honorable Theodore C. Zayner Presiding
Maggie Castellon, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: 408.882.2310

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Please state your case name, case number, the name of the attorney and contact number/email. It would also be helpful if you would identify the specific portion or portions of the tentative ruling that you wish to address. Please make sure you have timely notified the Court and all parties that you are contesting the tentative ruling. The tentative ruling will become the ruling of the Court if timely notice has not been given. (See R. Ct. 3.1308(a)(1); Local Rule 8.E.)

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LAW AND MOTION TENTATIVE RULINGS

DATE: July 22, 2026 TIME: 1:30 P.M.
PREVAILING PARTY SHALL PREPARE THE ORDER UNLESS OTHERWISE STATED (SEE RULE OF COURT 3.1312)

LINE #	CASE #	CASE TITLE	RULING
LINE 1	20CV363825	Hayes v. The Container Store, Inc. (Class Action)	See Line 1 for tentative ruling.
LINE 2	21CV378018	Felix v. Ghuman Dental Corporation, et al. (PAGA)	See Line 2 for tentative ruling.
LINE 3	24CV448840	Skanska-Shimmick-Herzog, a Joint Venture vs LAN/TYLIN, a Joint Venture, et al.	See Line 3 for tentative ruling.
LINE 4	24CV450643	Skye Molina vs JC GROUP INTERNATIONAL, INC. (Class Action)	See Line 4 for tentative ruling.
LINE 5	24CV454910	Ismael Villanueva Palafox et al vs Empire Farm Labor Contractor, LLC et al (Class Action)	See Line 5 for tentative ruling.
LINE 6	24CV454910	Ismael Villanueva Palafox et al vs Empire Farm Labor Contractor, LLC et al (Class Action)	See Line 5 for tentative ruling.
LINE 7	24CV454910	Ismael Villanueva Palafox et al vs Empire Farm Labor Contractor, LLC et al (Class Action)	See Line 5 for tentative ruling.
LINE 8	24CV454910	Ismael Villanueva Palafox et al vs Empire Farm Labor Contractor, LLC et al (Class Action)	See Line 5 for tentative ruling.
LINE 9	25CV460058	Phillip Clarin vs Proper Hospitality, LLC (Class Action)	Unopposed application for admission pro hac vice is GRANTED. Court will sign Proposed Order. No appearance necessary.
LINE 10	25CV470534	Skye Molina vs JC Group International, Inc. (PAGA)	See Line 10 for tentative ruling.
LINE 11			
LINE 12			
LINE 13			

Calendar Line 1

Case Name: *Hayes v. The Container Store, Inc.*
Case No.: 20CV363825

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Before the Court is Plaintiff's motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 24, 2027 at 2:30 p.m. in Department 5.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiff's case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" PAGA. The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76-77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of all individuals who are or were employed by Defendant as an hourly-paid or non-exempt employee in California during the Class Period, February 10, 2016 through June 6, 2024. (Agreement, ¶¶ 1.1.9, 1.1.21.) The settlement includes a subset "PAGA Settlement Group," defined as all individuals who are or were employed by Defendant as an hourly-paid or non-exempt employee in California during the PAGA Period, February 12, 2019 through June 6, 2024. (*Id.* at ¶¶ 1.1.10, 1.1.22.)

Defendant will pay a gross settlement amount of $2,500,000 on a non-reversionary basis, and this amount includes: attorney fees of up to 35 percent of the gross settlement amount ($875,000); litigation costs and expenses of $30,680; a PAGA penalties allocation of $250,000 (75 percent of which, or $187,500, will be paid to the LWDA and 25 percent of which, or $62,500, will be paid to PAGA Settlement Group Members as individual PAGA payments); a service payment of up to $14,000 to Plaintiff; and settlement administration costs of $20,609. (Agreement, ¶¶ 1.5, 1.6.2.)

The net settlement amount, estimated to be approximately $1,309,711, will be distributed to participating class members on a pro-rata basis according to the number of workweeks they were employed by Defendant, and individual PAGA payments will be distributed according to the number of pay periods worked. (Agreement, ¶¶ 1.1.1, 1.1.2, 1.8.) The Agreement provides that Simpluris, Inc. ("Simpluris") will serve as settlement administrator. (*Id.* at ¶ 1.1.20.) The Agreement further provides that any funds from uncashed settlement checks will be transmitted to the designated *cy pres* recipient, Legal Aid at Work. (*Id.* at ¶ 1.8.7.) The Court approves the *cy pres* designation.

In exchange for the settlement, the class members agree to release Defendant and related entities and persons from "all claims arising from the same nucleus of facts that were or could have been raised in the Complaint, which arose at any time during the Class Period[.]" (Agreement, ¶¶ 1.1.15, 1.1.17, 1.11.1.) PAGA Settlement Group members will be deemed to release Defendant and related entities and persons from "any and all claims for civil penalties under the PAGA arising out of or related to the allegations set forth in the Complaint and/or PAGA notice to the LWDA, including any and all claims arising from the same nucleus of facts that were or could have been raised in the PAGA notice to the LWDA, which arose at any time during the PAGA Period." (*Id.* at ¶¶ 1.1.16, 1.1.17, 1.11.2.) The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting Plaintiff's motion for preliminary approval, the Court approved Simpluris as settlement administrator. On February 23, 2026, Defendant delivered class data to Simpluris, and the Class List contained data for 2,456 Class Members. (Declaration of Alina Islas ("Islas Decl.") ¶¶ 5–6.) After updating the mailing addresses through the National Change of Address database, on April 9, 2026, Simpluris mailed the Class Notice via first class mail to all 2,456 individuals on the Class List. (*Id.* at ¶¶ 7–8.) Of the 283 Notice Packets returned as undeliverable, Simpluris performed skip-trace searches, located updated addresses for 16 Class Members, and re-mailed the Notice; ultimately, 267 Notice Packets remained undeliverable. (*Id.* at ¶ 9.)

The deadline for Class Members to request exclusion, object, or submit a workweek dispute was June 8, 2026. As of the date of Ms. Islas's declaration (June 29, 2026), Simpluris had received zero requests for exclusion, zero objections, and zero workweek disputes. (*Id.* at ¶¶ 10–13.) Accordingly, all 2,456 Class Members are participating Settlement Class Members. Simpluris estimates that the highest individual class payment will be approximately $3,064.15, the average individual class payment will be approximately $533.27, the highest individual PAGA payment will be approximately $147.82, and the average individual PAGA payment will be approximately $36.72. (*Id.* at ¶ 14.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections and no requests for exclusion, the Court finds no reason to deviate from its preliminary finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of $14,000. Plaintiff has provided a declaration describing his participation in this action, including responding to written discovery, providing information and documents to counsel, and preparing for and appearing for his deposition. The Court finds that a service award is justified and that the amount requested is reasonable. The service award is approved in the amount requested.

Plaintiff's counsel seeks an attorney fee award of $875,000, representing 35 percent of the gross settlement amount, as provided in the Agreement. (Motion, pp. 13–22; Parker-Fawley Decl., ¶¶ 10–12.) Plaintiff's counsel represents that the lodestar for this action is $424,150, based on 499 hours billed at $850 per hour. The requested fee reflects a multiplier of approximately 2.06, which is within the range of multipliers generally approved by California courts. (See *Wershba*, *supra*, 91 Cal.App.4th at p. 255 ["Multipliers can range from 2 to 4 or even higher."].) The benefits achieved by the settlement, the contingent nature of counsel's representation, and the absence of any objection to the fee request justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount.

Plaintiff's counsel requests reimbursement of litigation costs and expenses in the amount of $30,680 and provides a supporting declaration. (Motion, p. 22; Parker-Fawley Decl., ¶ 19.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of $20,609. (Islas Decl., ¶ 15.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 24, 2027 at 2:30 p.m. in Department 5. Class counsel shall submit the settlement administrator's accounting report at least ten court days prior to the compliance hearing.

Plaintiff shall prepare the order and judgment in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 2

Case Name: *Felix v. Ghuman Dental Corporation et al.*
Case No.: 21CV378018

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Before the Court is Plaintiff's motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for March 23, 2027 at 10:00 a.m. in Department 19.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiff's case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" PAGA. The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of "all persons currently or formerly employed by Defendants, either directly or through any subsidiary, staffing agency or professional employer organization, as non-exempt, hourly-paid employees, at any time during the period from February 17, 2018 through March 18, 2024 ("Class Period") in the State of California. (Declaration of Megan R. Lazar in Support of Motion for Final Approval ("Lazar Decl."), Ex. 1 ("Settlement Agreement").) The settlement includes a subset of Aggrieved Employees, defined as all persons currently or formerly employed by Defendants as non-exempt, hourly-paid employees at any time during the period from July 27, 2019 through March 18, 2024 ("PAGA Period") in the State of California. (Motion, pp. 4–5.)

Defendants will pay a non-reversionary gross settlement amount of $750,000, which includes: attorney fees of up to 35 percent of the gross settlement amount ($262,500); litigation costs not to exceed $35,000; a PAGA penalties allocation of $75,000 (75 percent, or $56,250, of which will be paid to the LWDA and 25 percent, or $18,750, of which will be distributed to Aggrieved Employees as individual PAGA payments); a service award of up to $7,500 to Plaintiff; and settlement administration costs of up to $7,950. (Motion, pp. 4–5; Lazar Decl., Ex. 1.) The settlement was negotiated based on Defendants' representation that no more than 11,591 workweeks were worked during the Class Period, with an escalator clause increasing the gross settlement amount if workweeks exceeded 12,750. The settlement administrator determined that the total number of workweeks during the Class Period was 10,771.13; the escalator clause was therefore not triggered, and the gross settlement amount of $750,000 remains unchanged. (Declaration of Lluvia Islas ("Islas Decl."), ¶¶ 11–12.)

The net settlement amount of $365,844.05 will be distributed to participating class members on a pro-rata basis according to the number of workweeks they worked during the Class Period. Individual PAGA payments will be distributed to Aggrieved Employees on a pro-rata basis according to the number of workweeks worked during the PAGA Period. The Agreement provides that Phoenix Settlement Administrators ("Phoenix") will serve as settlement administrator. The Agreement provides that any funds from uncashed settlement checks will be transmitted to Legal Aid at Work, for use in Santa Clara County, as the *cy pres* recipient. The Court approves the *cy pres* designation.

In exchange for the settlement, participating class members will release Defendants and related parties from all claims asserted in the operative complaint, that reasonably relate to or arise out of the same set of operative facts set forth in the operative complaint, and that could have been asserted based on the facts alleged in the operative complaint, comprising the wage-and-hour claims pleaded in the action. Aggrieved Employees will release all claims under PAGA that were alleged or that could have been alleged based on the facts asserted in the PAGA notice and the operative complaint, arising during the PAGA Period. The release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538.)

B. Administration of Settlement

In its order granting Plaintiff's motion for preliminary approval, the Court approved Phoenix as settlement administrator. On February 9, 2026, Defendants delivered class data to Phoenix, with a Class List containing 171 Class Members. (Islas Decl., ¶ 3.) On April 7, 2026, after performing a National Change of Address search, Phoenix mailed the Class Notice, in English and Spanish, to all 171 Class Members. (*Id.* at ¶¶ 4–5.) Ten notices were returned as undeliverable; Phoenix obtained updated addresses for all ten through skip tracing and promptly re-mailed the notices. (*Id.* at ¶ 6.) The deadline to request exclusion, submit a written objection, or dispute workweeks was May 22, 2026. As of the date of Ms. Islas's declaration (June 29, 2026), Phoenix had received zero requests for exclusion, zero objections, and zero workweek disputes. (*Id.* at ¶¶ 7–9, 11.)

Phoenix estimates that the average individual settlement share will be approximately $2,139.44, with a highest share of approximately $10,776.68 and a lowest share of approximately $4.76. (Islas Decl., ¶ 14.) There are 141 Aggrieved Employees, and Phoenix estimates that the average individual PAGA payment will be approximately $132.98. (*Id.* at ¶ 15.) The notice process has now been completed.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections and no requests for exclusion, the Court finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of $7,500. Plaintiff has provided a declaration detailing her participation in this litigation and the risks she undertook as the named plaintiff, including providing a broader general release of claims. The Court finds that a service award is justified and the amount requested is reasonable. The service award is approved in the amount requested.

Plaintiff's counsel seeks an attorney fee award of $262,500, representing 35 percent of the gross settlement amount. (Motion, pp. 15–24; Declaration of David D. Bibiyan in Support of Motion for Final Approval ("Bibiyan Decl."), ¶¶ 16–21.) Plaintiff's counsel represents that the lodestar for this action is $244,679.50, based on approximately 386.4 hours billed at counsel's hourly rates. This results in a multiplier of approximately 1.07, which is well within the range of multipliers generally approved by California courts. The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount.

Plaintiff's counsel requests reimbursement of litigation costs in the amount of $31,205.95 and provides an itemized accounting in support. (Motion, p. 24; Bibiyan Decl., ¶ 22.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of $7,950. (Islas Decl., ¶ 17 and Ex. B.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for March 23, 2027 at 2:30 p.m. in Department 19.

Plaintiff shall prepare the order and judgment in accordance with California Rules of Court, rule 3.1312.

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Calendar Line 3

Case Name: *Skanska-Shimmick-Herzog, a Joint Venture v. LAN/TYLIN, a Joint Venture et al.*
Case No.: 24CV448840

BACKGROUND

Plaintiff Skanska-Shimmick-Herzog (SSH) was hired by the Santa Clara Valley Transportation Authority (VTA) for the Silicon Valley Berryessa Extension Project C700 (the Project). (First Amended Complaint ["FAC"] at ¶¶ 8-10.) SSH was the design-build contractor on the Project. (FAC at ¶ 9.) SSH entered into a design subcontract with Lockwood Andrews Newnam, Inc. (LAN) and T.Y. Lin (TYLIN) (jointly LTYL). (*Id.* at ¶¶ 11, 15.) SSH built the Project according to LTYL's designs. (*Id.* at ¶ 15.) SSH and LTYL were involved in a prior lawsuit related to design errors and omissions arising out of the Project. (*Id.* at ¶ 17.) On March 18, 2019, SSH and LTYL entered into a settlement agreement. (*Id.* at ¶ 18.) While releases were provided subject to the settlement, indemnity rights and obligations unknown to SSH at the time were excepted from the release. (*Ibid.*)

On October 2, 2019, SSH subsequently filed suit against VTA for unpaid change orders and incentive payments related to the Project. (FAC at ¶ 19.) VTA countersued on November 19, 2020. (*Id.* at ¶ 20.) The parties entered into a global settlement agreement in 2023. (*Id.* at ¶ 30.) By the time of settlement, SSH had spent over $9 million in attorneys' fees, expert fees, and costs. (*Ibid.*) SSH maintains that it would have recovered more on its affirmative defenses but for the VTA's threat of $96 million in liquidated damages and design defect remediation costs. (FAC at ¶ 31.)

On October 4, 2024, SSH filed suit against LTYL. In its First Amended Complaint, SSH alleges LTYL was under the obligation to defend, indemnify, and hold harmless SSH from and against claims arising out of LTYL's performance on the Project. (FAC at ¶ 33.) SSH further alleges it "suffered harm under the VTA Settlement in the form of reduced payment for its otherwise valid claims against VTA. But for the design claims against SSH made by VTA, such as short-stopping, SSH would have received far more compensation." (*Id.* at ¶ 50.) SSH alleges LTYL was obligated to indemnify it for all such damages, costs, and fees incurred from the global settlement with VTA. (*Id.* at ¶ 54.) SSH further alleges, "[u]nder the global settlement, VTA was paid a large sum for design issues that it alleged was the responsibility of SSH. While SSH vigorously disputed VTA's allegations, SSH is informed and believes that the vast majority, if not all, of VTA's claims related to the LTYL scope of work under the SSH-LTYL Subcontract. Defendants promised to perform such design work under the SSH-LTYL Subcontract." (*Id.* at ¶ 58.) Based on these allegations, SSH brings claims against LTYL for (1) professional negligence; (2) breach of contract; (3) express contractual indemnity; and (4) equitable indemnity.

On May 21, 2025, LTYL in turn filed a cross-complaint against Anil Verma Associates (AVA), Inc. and Hatch Associates Consultants, Inc. (Hatch) as successor in interest to LTK Engineering Services (LTK). LTYL alleges that AVA and Hatch were subconsultants to LTYL on the Project and that it entered into written contracts with them for certain design services necessary to the Project. (First Amended Cross-Complaint ["FACC"] at ¶¶ 12-15.) LTYL alleges that AVA and Hatch "were obligated to perform their design work for the Project, and to defend, indemnify, and hold harmless LAN from and against claims arising out of their performance or failure in performance of their work on the Project." (FACC at ¶ 25.) LTYL sues AVA and Hatch for (1) breach of contract; (2) express indemnity; and (3) equitable indemnity.

LTYL, AVA, and Hatch (LTYL/AVA/Hatch) jointly move to designate this matter complex. Having reviewed the matter before the Court and in consideration of California Rule of Court, rule 3.400, the Court will deny the motion.

LEGAL STANDARD

A "complex case" is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel. (Cal. Rules of Court, rule 3.400(a).)

> In deciding whether an action is a complex case under (a), the court must consider, among other things, whether the action is likely to involve:

(1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve;

(2) Management of a large number of witnesses or a substantial amount of documentary evidence;

(3) Management of a large number of separately represented parties;

(4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or

(5) Substantial postjudgment judicial supervision.

(Cal. Rules of Court, rule 3.400(b).)

ANALYSIS

As an initial matter, the court notes that this is not a construction defect case requiring provisional designation under California Rules of Court, rule 3.400(c)(2). LTYL/AVA/Hatch liken this case to a construction defect case because it involves many parties and structures under the Project. (Mtn. to Designate Complex at p. 10:8-11:9.) However, at the same time, LTYL/AVA/Hatch concede that the claims here arise from design errors rather than construction defects. (*Id.* at p. 10:15-16.) In the absence of provisional designation, the Court considers whether this case satisfies the factors set forth under California Rules of Court, rule 3.400(b).

First, there are eight pretrial motions currently pending before the court. This includes LTYL's motion for summary judgment where it contends that SSH's damages methodology is improper and that SSH has no viable indemnity claim. The motion for summary judgment brought by LTYL and Hatch concerns the claims released by SSH upon settling their prior lawsuit. LTYL/AVA/Hatch maintain this motion is fact-intensive and requires an inquiry as to what SSH knew at the time it signed the settlement agreements. (Reply at p. 5:14-18.) While there are a significant number of pretrial motions pending before the Court, the adjudication of these motions is not inherently complex. The motion to compel is based on mediation privilege governed under Evidence Code section 1119. Additionally, the underlying issues of indemnity and the interpretation of settlement agreements are governed by ordinary contract law. (*Continental Heller Corp. v. Amtech Mechanical Services, Inc.* (1997) 53 Cal.App.4th 500, 504 ["Indemnity agreements are construed under the same rules which govern the interpretation of other contracts."]; *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810-811 ["A settlement agreement is a contract and the legal principles which apply to contracts generally apply to settlement contracts."].) As SSH aptly notes, noncomplex courts routinely try professional negligence, design, indemnity, and contract damages involving technical expert testimony. (Opposition at p. 12:24-26.) Thus, while the number of pretrial motions is large and possibly fact-intensive, they do not hinge on any difficult or novel issues.

Second, LTYL/AVA/Hatch contend there is a large number of witnesses and documentary evidence. The parties have collectively retained 11 expert witnesses whose testimony focuses on the design defects and damages alleged by SSH. (Reply at p. 3:21-22.) The summary of their opinions spans 150 pages. (*Id.* at p. 4:1-2.) According to SSH the parties will require the testimony of fact witnesses including current and former employees of each of the parties to this action, as well as the testimony of multiple non-parties such as Aldridge/Rosendin, Alstom, VTA, and BART. (*Id.* at p. 6:16-19.) The parties have produced 283,687 pages of documents to date, amounting to more than 2 terabytes of evidence. (*Id.* at p. 7:9-10.) While not all documents may be relevant to this litigation, there is still a substantial amount of documentary evidence that may require exceptional judicial management. Accordingly, this factor weighs in favor of designating this matter complex.

Third, contrary to LTYL/AVA/Hatch's assertion, there are not a substantial number of parties to this action. Although LTYL/AVA/Hatch submit an organizational chart showing the vast number of entities involved with the Project, that is not reflective of the parties to this litigation. (Declaration of Austin Benner ["Benner Decl."], Ex. B.) As LTYL/AVA/Hatch note, there are six entities that are parties to this action. SSH is the sole plaintiff. LTYL consisting of LAN and TYL are direct defendants in this action and are represented by the same counsel. AVA and Hatch/LTK are cross-defendants who are each represented by their own counsel. Arguably, this is not a "large number of separately represented parties" compared to typical complex cases.

Fourth, there are no pending related actions in other jurisdictions. LTYL/AVA/Hatch refer the Court to *Skanska-Shimmick-Herzog, a Joint Venture v. Santa Clara Valley Transportation Authority*, 20-CIV-02854 filed in San Mateo County. (Benner Decl., Ex. E.) There, SSH concurred that the case meets the criteria for complex designation. (*Ibid.*) However, this matter has since been resolved and dismissed with prejudice. The posture in this case is different and was filed after the prior litigation resolved. The issues presented by this action are different from the prior litigation. In the absence of any pending related cases requiring coordination, this factor weights against complex designation.

Lastly, the parties make no arguments regarding whether this action requires substantial postjudgment supervision. The Court assumes then that substantial postjudgment supervision is not needed. Thus, the only factor weighing in support of complex designation is the management of a large number of witnesses or substantial amount of documentary evidence. Nevertheless, as SSH notes, the parties have been able to exchange and manage discovery under the existing schedule, there is no ESI protocol, and no document management issues have been identified that would overwhelm the parties or the Court. (Opposition at p. 14:6-11.) Thus, while extensive, the documentary evidence is currently manageable.

The instant action represents what might be the tail end of a long, complicated, litigious history concerning the Project. But the Court is not persuaded that this action requires complex treatment. Therefore, the motion to designate this action as complex is DENIED.

CONCLUSION

The motion to designate this action complex is DENIED.

The Court will prepare the order.

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Calendar Line 4

Case Name: *Skye Molina v. JC Group International, Inc.* (Class Action)
Case No.: 24CV450643

Plaintiff Skye Molina brings this putative class action against defendant JC Group International, Inc. ("Defendant"), for various wage and hour violations.[1] Defendant moves for an order compelling arbitration of Plaintiff's individual claims and staying this action pending completion of the arbitration. The motion first came on for hearing on April 22, 2026, after which the Court continued the hearing and ordered supplemental briefing limited to the existence of an agreement to arbitrate. As discussed below, having now considered the parties' original and supplemental submissions, the Court DENIES the motion.

I. Background

In her supplemental declaration, Plaintiff states that she worked for Defendant as a kitchen manager at its Corona location from approximately August 2023 to October 2024. (Declaration of Skye Molina ("Molina Decl."), ¶ 2.) Defendant contends that, as part of her onboarding, Plaintiff accessed and electronically signed an Employment-At-Will & Arbitration Agreement (the "Agreement") on August 18, 2024. (Declaration of Adriana Molina ("Adriana Molina Decl."), ¶¶ 5–6 and Exs. A–B.) The Agreement provides that the employee and the Company will submit all disputes arising out of the employment relationship to binding individual arbitration and waives the right to proceed on a class or collective basis. (Agreement, ¶¶ 2–3.) In support of its original motion, Defendant submitted the declaration of General Manager Adriana Molina, attaching a copy of the Agreement (Exhibit A) and a screenshot from Defendant's document management software (Exhibit B).

At the initial hearing on April 22, 2026, the Court was not persuaded that Defendant had met its initial burden of establishing the existence of an agreement to arbitrate, because the copy of the Agreement submitted did not bear any signature, name, or date on its signature

[1]Plaintiff has brought a related case against Defendant in this Court, Case No. 25CV470534, for penalties under the Private Attorneys General Act. Defendant has filed a parallel motion to compel arbitration in that action, which was the subject of the same supplemental briefing order.

page, and the significance of the software screenshot was not adequately explained. Rather than deny the motion, the Court continued the hearing to July 22, 2026, and, by order dated May 15, 2026, directed each party to file a supplemental brief "regarding the existence of an agreement to arbitrate," with no responsive or reply briefs permitted. (Order re: Motion to Compel Arbitration, May 15, 2026.)

In its supplemental submission, Defendant argues that Plaintiff's failure to contest the existence of the Agreement in her original opposition ended the inquiry, and, in the alternative, submits the declaration of Assistant Manager Hye Yeon, describing Defendant's electronic onboarding process through a software program called "Toast" and attaching what Defendant represents to be the signed Agreement (Exhibit A) and a time-stamp screenshot (Exhibit B). (Declaration of Hye Yeon ("Yeon Decl."), ¶¶ 5–6.) Plaintiff, in turn, submits her own declaration flatly denying that she was ever presented with or signed the Agreement, and asserting that another of Defendant's managers completed her onboarding on Plaintiff's behalf. (Molina Decl., ¶¶ 3–12.)

II. Legal Standard

In determining the threshold question of whether an arbitration agreement exists between the parties, a court employs a three-step burden-shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 (*Espejo*); *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate by a preponderance of the evidence. If that burden is met, the burden shifts to the opposing party to show a factual dispute as to the agreement's existence. If the opposing party does so, the burden shifts back to the proponent of arbitration to establish the existence of a valid agreement by a preponderance of the evidence. (*Iyere*, supra, 87 Cal.App.5th at p. 755.)

Where the agreement is alleged to have been signed electronically, the proponent must establish that the electronic signature is "the act of the person" to whom it is attributed. (Civ. Code, § 1633.9, subd. (a); *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843 (*Ruiz*).) A proponent may do so "by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545 (*Bannister*).)

III. Existence of an Agreement to Arbitrate

A. Defendant's party-presentation argument does not resolve the motion.

Defendant first contends that, because Plaintiff did not challenge the existence or authenticity of the Agreement in her original opposition, the inquiry into whether an agreement exists is at an end. (Supp. Brief, pp. 1–3, citing *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218 and the party-presentation principle discussed in *United States v. Sineneng-Smith* (2020) 590 U.S. 371.) The Court is not persuaded. The Court expressly ordered supplemental briefing "regarding the existence of an agreement to arbitrate" and invited both parties to be heard on that precise question. Plaintiff has now squarely placed the existence and authenticity of the Agreement in dispute through her supplemental declaration.

The proponent of arbitration – not the opposing party – bears the burden of establishing that an agreement exists, and the Court retains the responsibility to determine that threshold question. (Code Civ. Proc., § 1281.2; *Iyere*, *supra*, 87 Cal.App.5th at p. 755.) *Condee* does not hold otherwise; it stands for the narrower proposition that a moving party need not authenticate a signature unless and until its validity is challenged. Plaintiff has now challenged it. The Court therefore proceeds to the merits of the burden-shifting analysis.

B. Plaintiff has placed the existence of the Agreement in dispute.

Assuming, without deciding, that Defendant's supplemental submission satisfies its minimal initial burden of producing a copy of an agreement purportedly bearing Plaintiff's electronic signature (see *Espejo*, *supra*, 246 Cal.App.4th at p. 1060), the burden shifts to Plaintiff to identify a factual dispute as to the Agreement's existence. A party's unequivocal declaration that she did not sign the agreement is sufficient to do so. (*Iyere*, *supra*, 87 Cal.App.5th at p. 758; *Gamboa*, *supra*, 72 Cal.App.5th at p. 168; *Ruiz*, *supra*, 232 Cal.App.4th at p. 840.)

Plaintiff has made precisely such a showing. She declares that she was never presented with the Agreement at the time of her hire, that she never signed it, and that she "would not have" signed an arbitration agreement had she been asked. (Molina Decl., ¶¶ 7, 12.) She further declares that she was unable to access her onboarding documents on her personal phone; that a kitchen supervisor directed her to complete onboarding in person; and that a front-of-house manager, "Brittany Marie," accessed Plaintiff's onboarding documents on the manager's own computer and completed the onboarding on Plaintiff's behalf, without Plaintiff's consent. (*Id*., ¶¶ 3–8.) Plaintiff also states that, based on her own subsequent duties, Defendant's practice was to have managerial employees sign onboarding documents – including arbitration agreements – on behalf of new hires. (*Id*., ¶¶ 9–11.) This evidence is more than sufficient to shift the burden back to Defendant to prove, by a preponderance of the evidence, that the electronic signature on the Agreement was "the act of" Plaintiff.

C. Defendant fails to establish that Plaintiff signed the Agreement.

On this record, the Court finds that Defendant has not carried its ultimate burden of proving the existence of a valid agreement to arbitrate by a preponderance of the evidence. Defendant's supplemental evidence consists of the Yeon declaration, which describes Defendant's onboarding process in general terms and asserts that only the employee knows her unique password, that management cannot access or modify the documents, and that no one else can apply an employee's electronic signature. (Yeon Decl., ¶¶ 5–6.) But Ms. Yeon does not claim to be a percipient witness to Plaintiff's onboarding, and her declaration describes Defendant's standard procedures rather than establishing what actually occurred with respect to Plaintiff. As in *Ruiz* and *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, a declarant's summary account of routine onboarding practices, without a showing of how the declarant knows that the plaintiff herself created the credentials and affixed the signature, is insufficient to establish that the signature was "the act of" the plaintiff. (*Ruiz*, *supra*, 232 Cal.App.4th at pp. 843–844; *Garcia*, *supra*, 102 Cal.App.5th at pp. 48, 53.)

Defendant's general assertion that only Plaintiff could have applied the signature is also directly contradicted by Plaintiff's specific, percipient account that a different manager accessed and completed her onboarding documents on that manager's own computer. (Molina Decl., ¶¶ 6–8.) Because no reply briefing was permitted, Defendant has not disputed or otherwise addressed these specific factual assertions, including Plaintiff's contention that Defendant's practice was to have managers execute onboarding documents for new hires. Defendant has likewise not produced electronic audit data, metadata, or other evidence linking the signature transmission to Plaintiff, of the kind found lacking in comparable cases. (See *Trinity v. Life Ins. Co. of North America* (2022) 78 Cal.App.5th 1111, 1124–1125; *Bannister*, *supra*, 64 Cal.App.5th at pp. 546–547.) Nor has Defendant explained how the copy of the Agreement it has submitted – the signature block of which remains blank, followed by a separate, unnumbered "Employee Signature" page bearing an image of a signature but no name or date – demonstrates that Plaintiff signed the Agreement itself.

Weighing the competing evidence, the Court finds that Defendant has not shown by a preponderance of the evidence that Plaintiff signed the Agreement. Accordingly, Defendant has not established the existence of an agreement to arbitrate. Having so found, the Court declines to reach Plaintiff's remaining arguments regarding preemption under the Federal Arbitration Act, unconscionability, and severability.

IV. Conclusion

Defendant's motion to compel arbitration and stay proceedings pending the completion of arbitration is DENIED.

The prevailing party shall prepare the order in accordance with California Rules of Court, rule 3.1312.

Calendar Lines 5 – 8

Case Name: Ismael Villanueva Palafox, et al. v. Empire Farm Labor Contractor, et al.
Case Nos.: 24CV454910 (Class Action); 25CV459247 (PAGA)

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 22, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. Introduction

This is a putative class action arising from alleged wage and hour violations. On December 24, 2024, plaintiffs Ismael Villanueva Palafox ("Ismael"), Jhonatan Villanueva Palafox ("Jhonatan"), and Juan Manuel Villanueva ("Juan")[2] filed a Complaint in docket 24CV454910 against defendants Empire Farm Labor Contractor ("Empire") and Christopher Ranch, LLC ("Christopher Ranch") (collectively, "Defendants") asserting causes of action for: (1) breach of contract; (2) failure to provide meal periods (Lab. Code, §§ 226.7 and 512); (3) failure to authorize and permit rest periods (Lab. Code, § 226.7); (4) failure to compensate rest breaks (Lab. Code, § 226.2); (5) failure to pay minimum wage for all hours worked (Lab. Code, §§ 200, 204, 226.2 1194, and 1198); (6) failure to pay minimum wage (Lab. Code, §§ 226.2, 1182.11, 1182.12, 1194, 1194.2 and 1197); (7) failure to pay overtime (Lab. Code §§ 558 and 1194); (8) failure to reimburse for business expenses (Lab. Code, § 2802); (9) waiting time penalties (Lab. Code, §§ 201-203); (10) failure to provide accurate itemized wage statements (Lab. Code, § 226); (11) unlawful deductions (Lab. Code, § 224).

On February 14, 2025, in docket 24CV454910, Plaintiffs filed an amended complaint adding plaintiff Angel Villanueva Vasquez ("Angel") (collectively with Ismael, Jhonatan, and Juan, "Plaintiffs"). On June 17, 2025, Plaintiffs filed the operative second amended complaint clarifying that Juan had passed away and that his estate now sought only individual recovery.

On February 18, 2025, in docket 25CV459247, Plaintiffs filed a separate representative action complaint against Defendants seeking civil penalties under the Private Attorneys General Act ("PAGA"). The PAGA complaint contains causes of action for (1) PAGA penalties

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[2] Due to the similarities in the plaintiffs' last names, the Court will refer to them by their first names. No disrespect is intended.

(Lab. Code, § 2699, subd. (a)); (2) failure to pay overtime premiums (Lab. Code, § 2699, subd. (f)); (3) meal and rest period premiums (Lab. Code, § 2699, subd. (f)); (4) penalties for failure to pay wages timely (Lab. Code, § 2699, subd. (f)). On May 23, 2025, Plaintiffs filed the operative amended PAGA complaint removing Juan as a plaintiff and adding Angel.

Now before the Court are Empire's motions to compel arbitration in each docket. Christopher Ranch has filed notices of joinder in each case. Plaintiffs have opposed each motion to compel arbitration and each joinder. Both Defendants have filed replies in each case. Because the evidence in the class action and PAGA complaints is identical, save for the addition of evidence related to Juan in the class action case, the court will discuss the motions in both cases together.[3]

II. Legal Standard

In ruling on a motion to compel arbitration, the Court must inquire as to (1) whether there is a valid agreement to arbitrate, and (2) if so, whether the scope of the agreement covers the claims alleged. (See *Howsan v. Dean Witter Reynolds* (2002) 537 U.S. 79, 84.) "Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate. [Citations.] The threshold question requires a response because if such an agreement exists, then the court is statutorily required to order the matter to arbitration." (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 19, internal quotation marks omitted.)

Under California law, "[a] written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.) "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] (a) The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for the revocation of the agreement." (Code Civ. Proc., § 1281.2, subds. (a), (b).) "This initial issue

[3] Juan is no longer a party to the PAGA case as discussed above.

also reflects the very plain principle that you cannot compel individuals or entities to arbitrate a dispute when they did not agree to do so." (*Fleming*, *supra*, 88 Cal.App.5th at p. 19.)

"Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see [Code Civ. Proc., § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense. [Citation.]" (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*).) If the proponent of arbitration has shown the existence of an arbitration provision governing the claims at issue by a preponderance of the evidence, the burden then shifts to the resisting party to prove a ground for denial. (*Ibid*.)

"Federal law is wholly congruent with these principles. As the United States Supreme Court observed two decades ago: 'Because the FAA is "at bottom a policy guaranteeing the enforcement of private contractual arrangements," [citation] we look first to whether the parties agreed to arbitrate a dispute, not to general policy goals, to determine the scope of the agreement.' (*EEOC v. Waffle House, Inc.* (2002) 534 U.S. 279, 294 [].) 'For arbitration is a matter of contract and a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.' (*United Steelworkers of America v. Warrior & Gulf Navigation Co.* (1960) 363 U.S. 574, 582.)" (*Fleming*, *supra*, 88 Cal.App.5th at pp. 19-20.) "The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 (*Pinnacle*).) "If no agreement to arbitrate was formed, then there is no basis upon which to compel arbitration." (*Ahlstrom v. DHI Mortgage Co., L.P.* (9th Cir. 2021) 21 F.4th 631, 635.)

"The FAA, which includes both procedural and substantive provisions, governs [arbitration] agreements involving interstate commerce." (*Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 840.) However, "[t]he procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement." (*Ibid*.)

Under the FAA, the court must grant a motion to compel arbitration if any suit is brought upon "any issue referable to arbitration under an agreement for such arbitration" (9 U.S.C. § 3), subject to "such grounds as exist at law or in equity for the revocation of any contract…" (9 U.S.C. § 2). The moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. (See *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396 [under both federal and state law, "the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate"]; *Rosenthal, supra,* 14 Cal.4th at p. 413 [moving party's burden is a preponderance of evidence].) A moving party can meet their initial burden by showing that an agreement to arbitrate the dispute exists. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 (*Espejo*).) The burden then shifts to the resisting party to prove a ground for denial. (*Rosenthal*, *supra,* 14 Cal.4th at p. 413.)

"In determining the rights of parties to enforce an arbitration agreement within the FAA's scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration." (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

> But the FAA's policy favoring arbitration … is merely an acknowledgment of the FAA's commitment to overrule the judiciary's longstanding refusal to enforce agreements to arbitrate and to place such agreements upon the same footing as other contracts. Or in another formulation: The policy is to make arbitration agreements as enforceable as other contracts, but not more so. Accordingly, a court must hold a party to its arbitration contract just as the court would to any other kind.

(*Morgan v. Sundance, Inc*. (2022) 596 U.S. 411, 418, internal citations and quotation marks omitted; see also *Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 569 ["California policy, like federal policy, puts arbitration agreements on equal footing with other types of contracts"].)

III. Request for Dismissal of Juan's Estate and Angel

Empire seeks dismissal of Angel in both dockets because he has signed an individual settlement agreement. (Declaration of Leticia Rodriguez ("Rodriguez Decl."), Ex. F.)[4] Empire also seeks dismissal of Juan's estate in the class action case, asserting that the executor of the estate signed a settlement agreement. (*Id.*, Ex. G.)[5] Plaintiffs do not respond to this argument. Accordingly, they have conceded this point. (See *Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16 [failure to address point is "equivalent to a concession"]; see also *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [failure to challenge a contention in a brief results in the concession of that argument].) The Court will order Juan's estate dismissed from the civil action and Angel dismissed from both the civil and PAGA actions.

IV. Existence of Agreement to Arbitrate

The moving party bears the burden of proving the existence of an agreement arbitrate by a preponderance of the evidence. As one Court of Appeal summarized,

> [T]he moving party bears the burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Rosenthal, supra*, 14 Cal.4th at p. 413.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543-544 (*Bannister*).) Alternatively, the moving party can meet its burden by setting forth the agreement's provisions in the motion. (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219 (*Condee*); see also Cal. Rules of Court, rule 3.1330 ["The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference."].) For this step, "it is not necessary to follow the normal procedures of document authentication." (*Condee*, at p. 218.) If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.

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[4] The Court relies on the version of the declaration filed in the class action case because it contains the evidence related to Juan.

[5] In connection with the motion, Exhibits F and G are provided only in Spanish with no English translations. Plaintiffs do complain that the Rodriguez declaration is "problematic" because Exhibit F (Plaintiffs mistakenly refer to this exhibit as Exhibit E in the opposition in the class action case), the settlement agreement signed by Angel, is not translated. But, in reply, Empire has provided a translated version of both settlement agreements. (See Supplemental Declaration of Catherine M. Houlihan in Support of Reply ("Houlihan Supp. Decl."), ¶¶ 6-7, Exs. D&E.)

> If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. (See *Condee, supra*, 88 Cal.App.4th at p. 219.) The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. [Citations.]
>
> If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party. (*Rosenthal, supra*, 14 Cal.4th at p. 413.)

(*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165-166.)

Here, to establish the existence of an agreement to arbitrate, Empire submits the declaration of Leticia Rodriguez, who holds the position of Human Resources Director. (Rodriguez Decl., ¶ 1.) Rodriguez declares that Empire, a farm labor contractor, hired Ismael, Jhonatan, and Angel on July 4, 2024 to harvest garlic for Christopher Ranch through the federal H-2A visa program. (*Id.* at ¶ 4.)[6] All three worked at Christopher Ranch from July l0, 2024 to August 15, 2024. (*Ibid*.) According to Rodriguez, Jhonatan was presented with and signed the arbitration agreement on July 4, 2024. (*Id.* at ¶ 12.) Attached to the declaration are a copy of the English version of the "job order" Plaintiffs were hired under (Exhibit A), acknowledgments of receipt of the job order signed by Jhonatan and Ismael (Exhibit B), and an arbitration agreement signed electronically by "Jonathan David Villanueva Palafox" (Exhibit C). (*Id.* at Exs. A-D.)

The arbitration agreement provides, "Employee and Company understand and voluntarily agree that any claim, dispute, or controversy arising out of or in any way related to Employee's employment with the Company, including, but not limited to, the terms and conditions related to employment, or the termination of the employment relationship, shall be resolved in accordance with the terms of this Agreement." (Rodriguez Decl., Ex. C.) It goes on

[6] "The H-2A Temporary Agricultural Program allows employers to recruit foreign agricultural workers when the domestic labor market cannot meet employers' needs. The United States Department of Labor (DOL) must certify an employer's participation in the H-2A program. This process requires the employer, among other things, to submit a 'job order' describing 'the material terms and conditions' of the jobs for which it seeks foreign workers." (*State ex rel. Cisneros v. Alco Harvest, Inc.* (2023) 97 Cal.App.5th 456, 458 (*Cisneros*).)

to state, “This Agreement is supported by our mutual promises to submit any claims against the other which are covered by this Agreement to final and binding arbitration, rather than to have them decided in court before a judge or jury.” (Rodriguez Decl., Ex. C.) Finally, the agreement states:

> To the maximum extent allowed by law, any dispute, controversy, claim, or cause of action arising out of or in relation to Employee’s employment with the Company or termination of employment (“Covered Claims”) shall be resolved by binding arbitration in accordance with this Agreement, Covered Claims include, but are not limited to, the following: claims for alleged embezzlement, conversion, disclosure of trade secrets, or breach of confidentiality; benefit claims; contract claims; claims for equitable relief; tort claims, such as, but not limited to, claims for wrongful termination and defamation; discrimination and harassment claims, including, without limitation, those brought under Title VII of the Civil Rights Act, the Age Discrimination in Employment Act, the American [sic] with Disabilities Act, or the Family Medical Leave Act; any wage and hour claims brought under the Fair Labor Standards Act, the California Labor Code, or any IWG Wage Order; any claims brought under the Private Attorneys General Act (“PAGA”) of 2004 (Cal. Lab. Code, § 2698 et seq.); and any other employment-related claims of any type unless otherwise specifically excluded below. Further, this Agreement applies to all covered Claims that the Company may have against Employee, as well as all Covered Claims that Employee may have against the Company, including any parent, subsidiary, and affiliated entities, and any of their owners, directors, officers, shareholders, employees, managers, members, agents, and successors (whether in an official or personal capacity).

A. Certified Translations

Plaintiffs contend that Empire has not met its initial burden to establish the existence of an arbitration agreement because the translations of the documents attached to Rodriguez’s declaration are not certified. Assuming without deciding that certified translations are required, Empire has cured this problem by providing certified translations in reply. (See Houlihan Supp. Decl., Exs. A-E.)

B. Jhonatan

As to Jhonatan, the Court finds that Defendants have met their initial burden by submitting prima facie evidence of Plaintiffs’ written agreement to arbitrate the claims asserted in the action. (*Espejo*, *supra*, 246 Cal.App.4th at p. 1060 [a defendant may meet their initial burden “by attaching a copy of the arbitration agreement purportedly bearing the opposing party’s signature”].)

Plaintiffs maintain that Jhonatan is Jhonatan's true name and that Jhonatan did not sign the arbitration agreement. As noted above, the arbitration agreement is signed by on "Jonathan David Villanueva Palafox." (Rodriguez Decl., Ex. C.) Jhonatan has provided his own declaration, indicating that he did not receive the arbitration agreement on July 4, 2024, that he did not sign the arbitration agreement, and that, at no time during his employment was he informed of the arbitration agreement. (Declaration of Jhonatan Villanueva Palafox, ¶¶ 5-7.) The contention that Jhonatan was not informed of the arbitration agreement is belied by Jhonatan's signature, which is handwritten, on the acknowledgement of receipt of the job order, which mentions the arbitration agreement. (See Rodriguez Decl., Exs. A&B.) Notably, Jhonatan does not declare that he did not sign the acknowledgment of receipt of the job order and the signature on that acknowledgement. Empire also presents evidence that it uses an employee management software called Seso that provides a unique link for presenting the arbitration agreement to employees and that such a personalized link was sent to Jhonatan to complete the arbitration agreement. (Rodriguez Decl., ¶ 8.) Additionally, Empire has provided evidence that payroll records exist for a Jonathan David Villanueva Palafox, (see Houlihan Supp. Decl., ¶ 8, Ex. F.), suggesting that Empire spelled may have spelled Jhonatan's name as "Jonathan" when they created his onboarding account. For these reasons, the Court finds that, when the burden shifted back to Empire to establish that an arbitration agreement exists between Jhonatan and Empire, it has met its burden.[7]

C. Ismael

As to Ismael, Empire has provided no evidence of an arbitration agreement signed by Ismael. Empire contends that Ismael is bound by the arbitration agreement because it was a material term and condition of employment. It further contends that he is bound by the arbitration agreement because he was informed in the job order that he would be required to sign an arbitration agreement and that he accepted employment despite that statement in the job order. Empire relies on cases that state generally, that "[w]hen an employee continues his or her employment after notification that an agreement to arbitration is a condition of continued employment, that employee has impliedly consented to the arbitration agreement. [Citations.]"

[7] The Court will discuss Plaintiffs argument that the agreement is unenforceable below.

(*Diaz v. Sohnen Enterprises* (2019) 34 Cal.App.5th 126, 130 (*Diaz*); see also *Pinnacle*, *supra*, 55 Cal.4th at p. 236; *Harris v. TAP Worldwide, LLC* (2016) 248 Cal.App.4th 373, 383 (*Harris*); *Craig v. Brown & Root, Inc.* (2000) 84 Cal.App.4th 416, 420 (*Craig*).)

Each of those cases is distinguishable from the instant case. In *Pinnacle*, which was not an employment case, the California Supreme Court held that a homeowners association was bound by a covenant in a recorded declaration entered into by individual homeowners based on the law applicable to common interest developments. In both *Diaz* and *Harris*, there was evidence that the employee received a copy of the arbitration agreement. (*Diaz*, *supra*, 34 Cal.App.5th at p. 128 ["All employees received a copy of the agreement to review at home."]; *Harris*, *supra*, 248 Cal.App.4th at pp. 377, 381 [employee confirmed receipt of dispute resolution agreement].) In *Craig*, the employee was provided with a memorandum and a brochure containing the terms of the arbitration agreement. (*Craig*, *supra*, 84 Cal.App.4th at pp. 419-420.) The memorandum and brochure did not refer to a separate arbitration agreement that must be signed.

In *Gorlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, the Court of Appeal affirmed the trial court's denial of a petition to compel arbitration. (*Id.* at p. 1512.) There, the employee handbook relied upon by the employer in that case, did not unilaterally impose an arbitration requirement that could create an implied in fact contract due to the employee's continued employment despite notice of the arbitration requirement. (*Id.* at p. 1509.) Instead, it contained an express requirement that the employee sign an arbitration agreement: " 'As a condition to employment, all Team Members must sign the Mutual Agreement to Arbitrate Claims … .' " (*Ibid*, italics omitted.) The Court of Appeal held that the handbook informed employees that they must sign the arbitration agreement and, because the employee did not do so, the court declined to find the existence of an implied in fact agreement. (*Ibid*.)

In *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164, 1167-1168 (*Mitri*), the employees received an employee handbook stating, in part, "Any dispute arising out of employment with the Company, as allowed by law, will be settled by binding arbitration. As a condition of employment, all employees are required to sign an arbitration agreement. . . . Employees will be provided a copy of their signed arbitration agreement." No signed arbitration agreement was provided in support of the motion to compel arbitration in that case but the employer did provide a signed copy of the acknowledgement of receipt of the employee handbook. (*Id.* at p. 1168.) The Court of Appeal affirmed the trial court's ruling denying the arbitration agreement. (*Id.* at p. 1174.) It rejected the employer's argument that the terms related to arbitration set forth in the handbook were sufficient to compel the employees to arbitration because that would contradict an express term in the agreement that an arbitration agreement would be signed. (*Id.* at pp. 1172-1173.) It further held that the employee handbook held itself out as an informational resource rather than a binding agreement. (*Id.* at p. 1173.)

Here, the job order states, "A copy of the applicable rules and policies will be provided to each worker on or before the first day of work, which includes a Dispute Resolution Agreement outlining procedures for the worker to follow when raising concerns and procedures for seeking prompt resolution including arbitration of unresolved matters. [¶] The Dispute Resolution Agreement shall not preclude the workers from filing claims with the America's Job Center of California offices (AJCCs) under the Employment Services Complaint System, and the workers will not face retaliation. [¶] The Dispute Resolution Agreement will be provided to H-2A workers outside of the U.S. prior to or at the time visas are issued, and U.S. workers no later than the first day of work." (Rodriguez Decl., Ex. A, p. C6 of C8.) Here, unlike in *Craig*, where the agreement was contained in the memorandum and brochure provided to the employee, the job order cannot constitute the arbitration agreement. Rather, as in *Mitri* and Gorlach, the job order refers to a separate arbitration agreement to be provided to the employee for signature. Empire has provided no evidence that Ismael ever received the arbitration agreement. Accordingly, he cannot be bound by its terms. Alternatively, the Court will find below that the agreement is unenforceable as to Ismael under *Cisneros*. The motion is DENIED as to Ismael.

V. Whether the Job Order Adequately Informs Prospective Employees of the Arbitration Requirement

Plaintiffs contend that the arbitration agreement is unenforceable because the job order does not inform prospective employees of the arbitration requirement. In *Cisneros*, the Court of Appeal held that waiver of the right to a jury trial and the right to bring class actions pursuant to an arbitration agreement constituted material terms of employment such that they must be included in the job order for the purposes of employment based on an H-2A visa. (*Cisneros*, *supra*, 97 Cal.App.5th at p. 461.) The court found that the job order, which did not mention arbitration, was insufficient to apprise the employee of the mandatory conditions of employment included in the arbitration agreement. (*Ibid*.) Accordingly, it held that the arbitration agreement was unenforceable. (*Ibid*.)

Here, unlike in *Cisneros*, the job order mentions the arbitration agreement in Addendum C, under a heading, "Additional Material Terms and Conditions of Job Offer." (Rodriguez Decl., Ex. A, p. C6 of C8.) As mentioned above, the job order states, "A copy of the applicable rules and policies will be provided to each worker on or before the first day of work, which includes a Dispute Resolution Agreement outlining procedures for the worker to follow when raising concerns and procedures for seeking prompt resolution including arbitration of unresolved matters. [¶] The Dispute Resolution Agreement shall not preclude the workers from filing claims with the America's Job Center of California offices (AJCCs) under the Employment Services Complaint System, and the workers will not face retaliation. [¶] The Dispute Resolution Agreement will be provided to H-2A workers outside of the U.S. prior to or at the time visas are issued, and U.S. workers no later than the first day of work." (Rodriguez Decl., Ex. A, p. C6 of C8.)

Plaintiffs contend that this statement in the job order is insufficient under *Cisneros*. Specifically, they assert that it "[d]oes not identify the agreement as a binding, all-encompassing arbitration agreement covering all employment claims; [d]oes not disclose the waiver of the right to a jury trial; [d]oes not disclose the class action and PAGA representative action waiver; [d]oes not disclose that signing the agreement is a condition of employment; [d]oes not attach or describe the agreement's actual terms; and [p]romises only future delivery, after workers have already accepted employment, obtained visas, and traveled internationally." (Opposition, p. 5:9-16.)

Empire asserts that *Cisneros* does not preclude an employer from explaining that an arbitration agreement is a condition of employment in an addendum to the job order. The Court agrees that Cisneros does not preclude including such information in an addendum. (*Cisneros*, *supra*, 97 Cal.App.5th at p. 461 [Stating that "Job Orders submitted to DOL have lengthy addenda describing such things as work experience and physical requirements, the grounds for terminating a worker, training and production standards, and reimbursement of transportation costs" but that the arbitration requirement was stated nowhere in the job order.].) Moreover, the portion of the addendum referring to the arbitration agreement lies under a heading referring to material terms of the job offer, alerting the reader to the fact that signing the dispute resolution agreement is a mandatory condition of employment. Additionally, the job order explicitly states that the arbitration agreement will be provided to H-2A employees outside the U.S. at or before the time visas are issued. The Court further agrees with Empire that Cisneros does not require the full terms of the arbitration agreement to be included in the job order itself.

Some of Plaintiffs' other argument, however, fare better. Specifically, Plaintiff contends that the job order does not alert the prospective employee to the fact that he or she will be waiving the right to a jury trial and the right to file a class action lawsuit. These were the specific rights the *Cisneros* court was concerned with in holding that the job order before it did not disclose mandatory conditions of employment. (*Cisneros*, *supra*, 97 Cal.App.5th at p. 461.) Here, the above statement in the job order cannot be read to apprise employees of the waiver of their jury and class action rights. Accordingly, the arbitration agreement is unenforceable as to Jhonatan and Ismael. The motion is DENIED to the extent it seeks to enforce the arbitration agreement as to Jhonatan and Ismael.

VI. Christopher Ranch's Joinder

Christopher Ranch seeks to join in Empire's motion. "Under certain circumstances, a nonsignatory to an arbitration agreement may seek to enforce it against a signatory. Whether such enforcement is permissible is a question of state law." (*Ford Motor Warranty Cases* (2023) 89 Cal.App.5th 1324, 1332.) "A third party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit." (*Jensen v. U-Haul Co. of California* (2017) 18 Cal.App.5th 295, 301, internal quotation marks omitted; see also Civ. Code, § 1559 ['[a] contract, made expressly for the benefit of a third person, may be enforced by him … .'].)

“ ‘Equitable estoppel precludes a party from asserting rights “he otherwise would have had against another” when his own conduct renders assertion of those rights contrary to equity.’ [Citation.] In the arbitration context, a party who has *not* signed a contract containing an arbitration clause may nonetheless be compelled to arbitrate when he seeks enforcement of other provisions of the same contract that benefit him.” (*Metalclad Corp. v. Ventana Environmental Organizational Partnership* (2003) 109 Cal.App.4th 1705, 1713.)

Because the Court finds that Empire cannot enforce the arbitration agreement as to Jhonatan and Ismael, the sole remaining named Plaintiffs, Christopher Ranch’s request for joinder is DENIED.

VII. Conclusion

Plaintiff Angel Villanueva Vasquez is hereby dismissed from both actions. The estate of Juan Manuel Villanueva is dismissed from docket 24CV454910. The motion to compel arbitration is DENIED in all other respects. Because the Court finds that the arbitration agreement is unenforceable by Empire, it DENIES Christopher Ranch’s request for joinder.

Plaintiffs shall prepare the order.

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Case Name: *Skye Molina v. JC Group International, Inc.* (PAGA)
Case No.: 25CV470534

Plaintiff Skye Molina brings this representative action against defendant JC Group International, Inc., for civil penalties under the Private Attorneys General Act ("PAGA"), Labor Code section 2698 et seq.[8] Defendant moves for an order compelling arbitration of Plaintiff's claims and staying this action pending completion of the arbitration. The motion first came on for hearing on April 22, 2026, after which the Court continued the hearing and ordered supplemental briefing limited to the existence of an agreement to arbitrate. As discussed below, having now considered the parties' original and supplemental submissions, the Court DENIES the motion.

I. Background

In her supplemental declaration, Plaintiff states that she worked for Defendant as a kitchen manager at its Corona location from approximately August 2023 to October 2024. (Declaration of Skye Molina ("Molina Decl."), ¶ 2.)

Defendant contends that, as part of her onboarding, Plaintiff accessed and electronically signed an Employment-At-Will & Arbitration Agreement (the "Agreement") on August 18, 2024. (Declaration of Adriana Molina ("Adriana Molina Decl."), ¶¶ 5–6 and Exs. A–B.) The Agreement provides that the employee and the Company will submit all disputes arising out of the employment relationship to binding individual arbitration and waives the right to proceed on a class, collective, or representative basis. (Agreement, ¶¶ 2–3.) In support of its original motion, Defendant submitted the declaration of General Manager Adriana Molina, attaching a copy of the Agreement (Exhibit A) and a screenshot from Defendant's document management software (Exhibit B).

At the initial hearing on April 22, 2026, the Court was not persuaded that Defendant had met its initial burden of establishing the existence of an agreement to arbitrate, because the

[8]Plaintiff has brought a related class action against Defendant in this Court, Case No. 24CV450643, asserting wage and hour claims. Defendant has filed a parallel motion to compel arbitration in that action, which was the subject of the same supplemental briefing order and continued hearing.

copy of the Agreement submitted did not bear any signature, name, or date on its signature page, and the significance of the software screenshot was not adequately explained. Rather than deny the motion, the Court continued the hearing to July 22, 2026, and, by order dated May 15, 2026, directed each party to file a supplemental brief "regarding the existence of an agreement to arbitrate," with no responsive or reply briefs permitted. (Order re: Motion to Compel Arbitration, May 15, 2026.)

In its supplemental submission, Defendant argues that Plaintiff's failure to contest the existence of the Agreement in her original opposition ended the inquiry, and, in the alternative, submits the declaration of Assistant Manager Hye Yeon, describing Defendant's electronic onboarding process through a software program called "Toast" and attaching what Defendant represents to be the signed Agreement (Exhibit A) and a time-stamp screenshot (Exhibit B). (Declaration of Hye Yeon ("Yeon Decl."), ¶¶ 5–6.)[9] Plaintiff, in turn, submits her own declaration flatly denying that she was ever presented with or signed the Agreement, and asserting that another of Defendant's managers completed her onboarding on Plaintiff's behalf. (Molina Decl., ¶¶ 3–12.)

II. Legal Standard

In determining the threshold question of whether an arbitration agreement exists between the parties, a court employs a three-step burden-shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); see also *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 (*Espejo*); *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate by a preponderance of the evidence. If that burden is met, the burden shifts to the opposing party to show a factual dispute as to the agreement's existence. If the opposing party does so, the burden shifts back to the proponent of arbitration to establish the existence of a valid agreement by a preponderance of the evidence. (*Iyere*, supra, 87 Cal.App.5th at p. 755.)

[9] Defendant electronically filed its supplemental brief on the evening of July 8, 2026, and filed an identical supplemental brief the following morning, July 9, 2026. The Court has considered the brief and treats it as timely filed on July 8, 2026.

Where the agreement is alleged to have been signed electronically, the proponent must establish that the electronic signature is "the act of the person" to whom it is attributed. (Civ. Code, § 1633.9, subd. (a); *Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843 (*Ruiz*).) A proponent may do so "by presenting evidence that a unique login and password known only to that person was required to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions." (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 545 (*Bannister*).)

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III. Existence of an Agreement to Arbitrate

A. Defendant's party-presentation argument does not resolve the motion.

Defendant first contends that, because Plaintiff did not challenge the existence or authenticity of the Agreement in her original opposition, the inquiry into whether an agreement exists is at an end. (Supp. Brief, pp. 1–3, citing *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218 and the party-presentation principle discussed in *United States v. Sineneng-Smith* (2020) 590 U.S. 371.) The Court is not persuaded. The Court expressly ordered supplemental briefing "regarding the existence of an agreement to arbitrate" and invited both parties to be heard on that precise question. Plaintiff has now squarely placed the existence and authenticity of the Agreement in dispute through her supplemental declaration.

The proponent of arbitration – not the opposing party – bears the burden of establishing that an agreement exists, and the Court retains the responsibility to determine that threshold question. (Code Civ. Proc., § 1281.2; *Iyere*, *supra*, 87 Cal.App.5th at p. 755.) *Condee* does not hold otherwise; it stands for the narrower proposition that a moving party need not authenticate a signature unless and until its validity is challenged. Plaintiff has now challenged it. The Court therefore proceeds to the merits of the burden-shifting analysis.

B. Plaintiff has placed the existence of the Agreement in dispute.

Assuming, without deciding, that Defendant's supplemental submission satisfies its minimal initial burden of producing a copy of an agreement purportedly bearing Plaintiff's electronic signature (see *Espejo*, *supra*, 246 Cal.App.4th at p. 1060), the burden shifts to Plaintiff to identify a factual dispute as to the Agreement's existence. A party's unequivocal declaration that she did not sign the agreement is sufficient to do so. (*Iyere*, *supra*, 87 Cal.App.5th at p. 758; *Gamboa*, *supra*, 72 Cal.App.5th at p. 168; *Ruiz*, *supra*, 232 Cal.App.4th at p. 840.)

Plaintiff has made precisely such a showing. She declares that she was never presented with the Agreement at the time of her hire, that she never signed it, and that she "would not have" signed an arbitration agreement had she been asked. (Molina Decl., ¶¶ 7, 12.) She further declares that she was unable to access her onboarding documents on her personal phone; that a kitchen supervisor directed her to complete onboarding in person; and that a front-of-house manager, "Brittany Marie," accessed Plaintiff's onboarding documents on the manager's own computer and completed the onboarding on Plaintiff's behalf, without Plaintiff's consent. (*Id*., ¶¶ 3–8.) Plaintiff also states that, based on her own subsequent duties, Defendant's practice was to have managerial employees sign onboarding documents – including arbitration agreements – on behalf of new hires. (*Id*., ¶¶ 9–11.) This evidence is more than sufficient to shift the burden back to Defendant to prove, by a preponderance of the evidence, that the electronic signature on the Agreement was "the act of" Plaintiff.

C. Defendant fails to establish that Plaintiff signed the Agreement.

On this record, the Court finds that Defendant has not carried its ultimate burden of proving the existence of a valid agreement to arbitrate by a preponderance of the evidence. Defendant's supplemental evidence consists of the Yeon declaration, which describes Defendant's onboarding process in general terms and asserts that only the employee knows her unique password, that management cannot access or modify the documents, and that no one else can apply an employee's electronic signature. (Yeon Decl., ¶¶ 5–6.) But Ms. Yeon does not claim to be a percipient witness to Plaintiff's onboarding, and her declaration describes Defendant's standard procedures rather than establishing what actually occurred with respect to

Plaintiff. As in *Ruiz* and *Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, a declarant's summary account of routine onboarding practices, without a showing of how the declarant knows that the plaintiff herself created the credentials and affixed the signature, is insufficient to establish that the signature was "the act of" the plaintiff. (*Ruiz*, *supra*, 232 Cal.App.4th at pp. 843–844; *Garcia*, *supra*, 102 Cal.App.5th at pp. 48, 53.)

Defendant's general assertion that only Plaintiff could have applied the signature is also directly contradicted by Plaintiff's specific, percipient account that a different manager accessed and completed her onboarding documents on that manager's own computer. (Molina Decl., ¶¶ 6–8.) Because no reply briefing was permitted, Defendant has not disputed or otherwise addressed these specific factual assertions, including Plaintiff's contention that Defendant's practice was to have managers execute onboarding documents for new hires. Defendant has likewise not produced electronic audit data, metadata, or other evidence linking the signature transmission to Plaintiff, of the kind found lacking in comparable cases. (See *Trinity v. Life Ins. Co. of North America* (2022) 78 Cal.App.5th 1111, 1124–1125; *Bannister*, *supra*, 64 Cal.App.5th at pp. 546–547.) Nor has Defendant explained how the copy of the Agreement it has submitted – the signature block of which remains blank, followed by a separate, unnumbered "Employee Signature" page bearing an image of a signature but no name or date – demonstrates that Plaintiff signed the Agreement itself.

Weighing the competing evidence, the Court finds that Defendant has not shown by a preponderance of the evidence that Plaintiff signed the Agreement. Accordingly, Defendant has not established the existence of an agreement to arbitrate. Having so found, the Court declines to reach Plaintiff's remaining arguments regarding preemption under the Federal Arbitration Act, unconscionability, and severability. For the same reason, the Court need not, and does not, reach the arbitrability of Plaintiff's individual and representative PAGA claims, as any such question arises only if a valid agreement to arbitrate exists.

IV. Conclusion

Defendant's motion to compel arbitration and stay proceedings pending the completion of arbitration is DENIED.

The prevailing party shall prepare the order in accordance with California Rules of Court, rule 3.1312.

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